

		Again, Defendants argue that if the requests for admissions had been admitted, they would have prevailed on their summary judgment motion. (Motion at 12:12-15.) Defendants, however, fail to prove that is the case. It would be error for the court to rely on “a conclusory statement of counsel.” (<i>Garcia v. Hyster Co.</i> (1994) 28 Cal.App.4th 724, 737.) In addition to the foregoing, the Defendants have failed to segregate which time was spent proving the facts relating to the requests for admissions in set one as opposed in set two. Also, only fees incurred after the denial are recoverable and therefore the Defendants’ request for fees starting on the date the first set of requests for admissions was served is improper. (<i>Wimberly v. Derby Cycle Corp.</i> (1997) 56 Cal.App.4th 618, 638.) In short, Defendants have numerous fatal failures in their showing to support this motion. They fail to show precisely what facts Plaintiff denied they were forced to truly prove at trial. They appear to assume that because they prevailed at trial they necessarily proved every fact Plaintiff denied in the cited requests for admissions. Indeed, nothing is presented to show what Defendants proved at trial. Moreover, there is no attempt to differentiate between the fees that were incurred to prove the matters Plaintiff denied and the fees that were incurred on all other issues and proceedings in the case. Contrary to Defendants’ contention, there is no authority for them to recover all their fees because they believe they would have prevailed on summary judgment. Based on the foregoing, the motion is DENIED. Plaintiff’s counsel is ordered to give notice of this ruling.
10.	<i>Lopez vs. Nissan North America, Inc.</i> <i>2024-01388370</i>	<u>Please see notice above regarding oral argument on this motion/petition</u> Before the court is the motion for attorney fees, costs, and expenses filed by plaintiff Karina E. Lopez (Plaintiff) against defendant Nissan North America, Inc. (Defendant). As more fully set forth below, the motion is GRANTED in the reduced amount of \$21,789.22. The parties settled this Song-Beverly case before trial with Defendant agreeing to pay reasonable attorney fees, costs, and expenses to Plaintiff as the prevailing party. As such, there is no dispute among the parties as to Plaintiff’s right to recover her attorney fees, costs, and expenses. Rather,

		the dispute focuses on what is the reasonable amount of attorney fees, costs, and expenses. Plaintiff seeks an order awarding \$35,406.47 for (1) \$21,491.50 incurred in attorney fees, plus a 1.5 multiplier for a total of \$32,237.25; (2) an additional \$2,400.00 for anticipated hours in reviewing the opposition, drafting the reply, and attending the hearing on this motion; and (3) \$769.22 for Plaintiff's uncontested costs and expenses. As an initial matter, Defendant's evidentiary objections are OVERRULED. The Song-Beverly Act provides for attorney fees, costs, and expenses to the prevailing party in a lemon law case: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794, subd. (d).) "Determining a reasonable attorney fee award in Song Beverly Act cases "'ordinarily begins with the 'lodestar,' [which is] the number of hours reasonably expended multiplied by the reasonable hourly rate.'" [Citation.] The lodestar may 'then be adjusted based on factors specific to the case, in order to fix the fee at the fair market value of the legal services provided.' [Citation.] The lodestar method 'anchors the trial court's analysis to an objective determination of the value of the attorney's services,' and thus ensures the amount awarded is not arbitrary. [Citation.]" (<i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147, 1157-1158.) <u>Hourly Rates:</u> The reasonable hourly rate in this case are those charged by consumer attorneys practicing in the local legal community in Orange County. (<i>Tidrick, supra</i>, 112 Cal.App.5th at p. 1158.) The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. (<i>Heritage Pac. Fin., LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009; <i>569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 437.) The court may consider various other factors when determining a reasonable hourly rate, including the attorney's skill and experience, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates.
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(*Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632.)

Here, Plaintiff seeks hourly rates for partner Carey Wood of \$560, senior associate Iraida Gonzalez of \$480, and associate Walker of \$440 and associate Rogers of \$430, and paralegals of \$215. Based on the evidence provided by the parties, and the court's own experience, the court finds the hourly rates sought are high based on the respective attorney's level of skill and experience. The court approves the following rates: \$500 for Wood, \$450 for Gonzalez, and \$400 for both Rogers and Walker, and \$200 for the paralegals given the facts and circumstances of this particular case.

Hours Expended: "[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.) To oppose a showing of a fee request supported by declarations describing the efforts taken with billing records to establish the hours of work, a party may either "attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable." (*Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc.* (2008) 163 Cal.App.4th 550, 563-564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Id.* at p. 564.)

Fee award amounts are matters within the trial court's discretion because the "trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

Here, Plaintiff seeks 52.5 total hours of attorney and paralegal time. Defendant contends that 1.3 total hours for preparing the case management statement and multiple reviews of Defendant's case management statement are unreasonable. The court finds some of the time spent is purely clerical. The following time is denied: by Rogers on 08/14/24 (0.2) and by Olvera on 09/06/24 (0.3) and 9/9/24 (0.1).

Defendant next contends the time spent on preparing and responding to discovery requests, and preparing its

standard discovery motion, are excessive particularly since Plaintiff's counsel uses templates. The billing records show, however, the time spent on each matter is generally reasonable and commensurate with the relative attorney's skill and experience. The total time spent also is reasonable.

Defendant argues Plaintiff has overbilled for anticipated time in drafting the reply and attending the hearing on this fee motion. Plaintiff seeks 5 total hours to review the opposition, prepare the reply, and attend the hearing. The court finds the time to be reasonable.

Other than the hours specifically objected to by Defendant, the billing records show the paralegals routinely billed for purely clerical and administrative tasks that should ordinarily be covered by the firm overhead and reflected in attorney time. The court may reduce the hours it determines were excessive or not supported. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816; *Christian Research Institute v. Ahor* (2008) 165 Cal.App.4th 1315, 1326-29.) The paralegals billed for time reviewing documents for filing purposes, to check deadlines, update the calendar, or for no stated purpose. Many of the entries also appear duplicative of the attorney's work. The following entries are denied: by Olvera on 04/03/24 (0.3), 04/03/24 (0.1), 09/16/24 (0.1), 09/17/24 (0.2), 09/25/24 (0.2), 10/08/24 (0.5), 10/15/24 (0.6), 10/15/24 (0.1), 11/19/24 (0.1), 11/21/24 (0.1), 01/07/25 (0.1), 01/07/25 (0.1), 02/03/25 (0.1), 02/27/25 (0.1), 02/28/25 (0.8), 06/13/25 (0.2), 06/18/25 (0.1), 06/27/25 (0.1), 07/11/25 (0.1), 10/08/25 (0.1); by Walls on 04/23/24 (0.1), and 04/23/24 (0.1); and by Flores on 11/13/25 (0.2), 11/13/25 (0.1), 11/21/25 (0.1), and 01/20/26 (0.3).

The lodestar is fixed in the amount of \$21,020 as follows:

<u>Timekeeper</u>	<u>Rate</u>	<u>Hours</u>	<u>Amount</u>
Wood	\$500	3.2	\$1,600
Gonzalez	\$450	6.2	\$2,790
Rogers	\$400	32.6	\$13,040
Walker	\$400	1.8	\$720
Paralegals	\$200	3.1	\$620
Anticipated time on this motion	<u>\$450</u>	<u>5.0</u>	<u>\$2,250</u>

		TOTAL \$21,020 <u>Multiplier:</u> The purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases, and the adjustment to the lodestar figure constitutes earned compensation that is intended to approximate market-level compensation for services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney's fees. (<i>Ketchum, supra</i>, 24 Cal.4th at p. 1138.) The court exercises its discretion to deny an award of an enhancement or multiplier because it does not find the facts and circumstances of this case to justify a multiplier. <u>Costs:</u> Plaintiff filed a costs memorandum stating she incurred \$769.22 in costs. (ROA 60.) Defendant does not challenge these costs by way of a motion to strike or tax costs, or in opposition to the instant motion. <u>Total Award:</u> When the amount of fees awarded (\$21,020) is added to the costs and expenses awarded (\$769.22) the total award is \$21,789.22. Based on the foregoing, the motion for attorney fees, costs, and expenses is GRANTED, and Plaintiff is awarded a total of \$21,789.22 as against Defendant. Plaintiff's counsel is ordered to give notice of this ruling.
11.	<i>Litrinium, Inc. vs. Adas</i> 2021-01210846	Due to the court's unavailability as stated above, the hearing in this case is continued to TUESDAY, JUNE 16, 2026, AT 10:00 A.M., IN DEPARTMENT C23. A tentative ruling will be posted in advance of that hearing. The clerk is directed to give notice of this ruling.
12.	<i>Claim of Tran</i> 2025-01489611	<u>Please see notice above regarding oral argument on this motion/petition</u> Before the court are (1) a status conference, and (2) an order to show cause as to why monetary sanctions should not be imposed on Tran's counsel, Kevin Gres, for his failure to appear at the May 11, 2026 hearing as ordered by the court. All counsel are ordered to appear for the status conference and the order to show case hearing.
13.	<i>Claim of Tran</i> 2025-01527304	<u>Please see notice above regarding oral argument on this motion/petition</u>